

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

September 28, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Dauod vs. Mercedes-Benz USA, LLC 2025-01482556	Motion to Vacate Plaintiff Omar Dauoud’s motion to vacate order compelling arbitration and request for monetary, evidentiary, terminating, and contempt sanctions is denied. “To discourage delays in arbitrations, Code of Civil Procedure section 1281.97 provides a remedy when a company’s share of the initial arbitration fees ‘are not paid within 30 days’ of the invoice.” (<i>Anoke v. Twitter, Inc.</i> (2024) 105 Cal.App.5th 153, 156.) “Once an employee or consumer initiates an arbitration, the arbitration provider must ‘immediately provide an invoice for any fees and costs required before the arbitration can proceed to all of the parties to the arbitration.’ (Code Civ. Proc., § 1281.97, subd. (a)(2).) ‘To avoid delay’ the arbitration provider must issue the invoices ‘to the parties as due upon receipt,’ unless the agreement states otherwise. (<i>Anoke, supra</i>, 105 Cal.App.5th at pp. 158-159.) However, court have held that these statutes must be construed consistently with California’s longstanding anti-forfeiture principles and do not automatically extinguish a party’s contractual right to arbitrate based upon every untimely payment of arbitration fees. (<i>See Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310.) Here, the Court finds Defendant Mercedes-Benz USA, LLC did not forfeit its right to compel arbitration. (<i>Hohenshelt v Superior Court, supra</i>, at pp. 345–346.) The evidence reflects that AAA served the invoice on Defendant’s counsel at an email address that was not Defendant’s designated electronic service address. (See Code Civ. Proc., § 1010.6; Cal. R. Ct. Rule 2.251(b)(1)(A); AAA Rules R-40.) Because there is no evidence that Defendant ever consented, or agreed, to accept service at an alternate address, the Court finds Defendant’s failure to pay the invoice within 30 days was not willful, fraudulent, or otherwise grossly negligent. Absent finding a material breach of the arbitration agreement, the Court also finds the imposition of sanctions is also not appropriate. Defendant shall give notice of the ruling.

		ADR Review Hearing Continued to 3/22/27 at 9:00 a.m.
2	Di Lorenzo vs. Asset Collection Enforcement Services, Inc. 2026-01551839	Demurrer to Complaint Motion to Strike Complaint Continued to 11/16/2026
3	Hart vs. Providence Mission Hospital - Laguna Beach 2024-01451053	Motion for Summary Judgment and/or Adjudication Off Calendar
4	Mazroey vs. Dauger 2026-01552318	Motion to Strike - Anti SLAPP The Court will hear argument. Case Management Conference
5	Sunnyside Cremation and Funeral Inc. vs. California Mortuary Group, Inc. 2020-01169105	Motion for Summary Judgment and/or Adjudication The Court will hear argument.

6	Thomas Vogeles & Associates, APC vs. Kern River Corridor Endowment and Holding Co. 2025-01491400	Motion for Summary Judgment and/or Adjudication The Court will hear argument.
7	Wilson vs. Dan 2025-01523063	Motion to Increase the Amount of Undertaking Off Calendar
8	Awad vs Rea 2024-01396269	Motion to Set Aside/Vacate Default and Judgment The Court will hear argument on the issue of service. OSC re: Dismissal re: 585 Default Packet
9	Menon vs Memorial Care Saddleback Medical Center 2024-01379144	Motion to Be Relieved as Counsel of Record The motion by Peter McNulty and Brett Rosenthal of McNulty Law Firm, to be relieved as counsel of record for plaintiffs Krishna Menon, Parvathi Devi Geetha Devi, and Shreejith Menon, is granted. Counsel is ordered to submit a new proposed order by courtesy copy to this Court with the names of all clients (the proposed order submitted on 4/8/26 omits the name of Shreejith Menon) and with the updated information for future events, including the motion to strike or tax costs scheduled for hearing on 10/19/26. Upon the Court's review and execution of the (new) order, counsel shall serve the signed order on the client and all parties that have appeared. McNulty Law Firm will be relieved as counsel of record for plaintiffs Krishna Menon, Parvathi Devi Geetha Devi, and Shreejith Menon, effective upon the filing of the proof of service of the signed order upon the clients and all parties. McNulty Law Firm is ordered to give notice of the ruling.

	Jury Trial
	Off calendar